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# Supreme Court bends again to Trump's will

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# Supreme Court bends again to Trump's will

As [Donald Trump](#)'s alarming [abuse of power](#) has spread across every aspect of the government, we've watched many of the powerful institutions that we expected would resist, if only to preserve their own prerogatives, fail spectacularly. The [leading example](#) is the Republican Congress, which has essentially turned itself into a sad collection of desiccated potted plants, abdicating its role in our system of checks and balances. But it isn't alone. Numerous [universities](#), [media companies](#), [corporations](#), [law firms](#) and [even some of the states](#) have bent to Trump's will.

Only the judiciary has managed, at least in part, to serve as a restraint on this out-of-control presidency. But even it is straining under pressure.

On Monday, the Supreme Court [lifted an injunction](#) issued by a federal judge that had prevented the government from deporting migrants to countries with which they had no previous relationship or experience. These "third country deportations" could begin immediately, according to Department of Homeland Security (DHS) spokeswoman Tricia McLaughlin. "Fire up the deportation planes," she said in a statement that proclaimed the ruling "a victory for the safety and security of the American people." Immigration rights lawyers decried the decision, noting the migrants could face imprisonment, torture and death after being shipped off to [violent failed states](#) like South Sudan or Libya.

The decision came in an unsigned order, the latest example of the court's use of its so-called shadow docket, which allows the justices to consider plaintiffs seeking immediate action until a full appeal can be heard. Justices Sonia Sotomayor, Elena Kagan and Ketanji Brown Jackson dissented.

The case, known as DHS v. DVD, is only one of a number of immigration cases that have been taken up by the Supreme Court on an emergency basis. In these decisions, the court has made a few feints in the way of preserving the Constitution, including [ruling](#) that Trump cannot completely suspend habeas corpus and that the government must provide at least some rudimentary due process before throwing people into foreign gulags.

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In fact, [the pattern](#) of the court's shadow docket decisions, which are typically unsigned and lack any explanation, indicates a majority of the justices believe the president has the authority to do pretty much whatever he wants, even if it means defying the lower courts. Their [apparent reverence](#) for the "[unitary executive theory](#)" is so intense you begin to wonder if they will decide that he has the right to defy them too.

This makes it hard to imagine the court will overturn a [recent order](#) by the 9th U.S. Circuit Court of Appeals that found [Trump had probably met](#) the legal threshold [required by law](#) when he federalized the National Guard in Los Angeles. It seems absurd that anyone with the smallest bit of common

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sense could say that Los Angeles was in such a state of chaos that the president had to intervene — but apparently that's at his discretion to decide. In the meantime, we await another ruling by the lower court judge as to whether Trump's deployment of active-duty Marines [violates the Posse Comitatus Act](#). But again, considering how the Supreme Court has supported the presidential prerogative, it seems likely the justices will land on Trump's side of the issue yet again.

Meanwhile, Los Angeles *is* under siege — but not from protesters, and not from the National Guard or the Marines. Instead Immigration and Customs Enforcement (ICE), along with Customs and Border Patrol (CPB) agents, are rampaging across Los Angeles County like a roving, violent gang out of “[A Clockwork Orange](#).”

We have all seen horrific footage of police beatings before. We watched them kill George Floyd before our very eyes. So it's not that violence under color of law is unprecedented. What we have not seen, at least since the days of the Ku Klux Klan, are unidentified, armed, masked men in groups assaulting and abducting people in workplaces, homes and on the streets without warrants. The sight of it is truly terrifying. But that, of course, is the point.

Social media is inundated with videos of these raids. This footage of 48-year-old gardener Narciso Barranco [being mercilessly beaten](#) by what appear to be CPB agents has gone viral, but there are dozens just like it.

Barranco has three American sons who joined the Marines, two of whom are still on active duty. His oldest son Alejandro, a veteran who served in Afghanistan, told CNN he feels betrayed after his father's arrest while working as a landscaper at IHOP. Although the elder Barranco is undocumented, he's lived in the U.S. since he was a child, and has worked and paid taxes for decades. Alejandro was finally able to [visit his father](#) in the downtown detention center, where he learned Narciso had been injured in the beating and was facing squalid conditions with meager rations in a cell that housed dozens of other people.

He is one of many.

All across Los Angeles — and, for that matter, the country — people are finding out, with videos like these, that their relatives, neighbors and friends have been taken. Others are being disappeared off the streets, with nobody knowing what's happened to them.

Acts like these have forced members of the community to document and publicize what's going on. Groups like [Unión del Barrio](#), [The Santanero](#), [Santa Ana Problems](#), [L.A. Taco](#) and [Siempre Unidos L.A.](#) are out in the streets, following the raids and filming them. People emerge from behind closed doors and stop their cars and try to form protective rings around the hunted men and women, failing more often than not, but refusing to make the abductions easy.

The agents are all disguised by their masks and refuse to give identification, so there can be no accountability for them. But there will at least be a record of what they did.

[According to the Los Angeles Times](#), the vast majority of those detained in L.A. County have no criminal record, a fact that [holds true across the country](#). With families and communities being torn apart, at this point we are left to cling to a thin reed of hope that the Supreme Court will uphold the Constitution, which guarantees due process and says we do not have a king — or even an elected dictator. I wish I felt more confident that they will come through.

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